

Rupprecht did not attempt to meet and confer before the opposition deadline. (Davidson Decl. ¶¶ 4-6.) The reply does not contest these facts but asserts that the November 4, 2025 was the attempt to meet and confer. (Reply pp. 2-3.) A meet and confer letter alone without a phone call, videoconference, or in person meeting does not satisfy the statute.

9. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING IN RE: MOTION FOR LEAVE TO AMEND COMPLAINT AND CONTINUE TRIAL DATE
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by plaintiffs David Hammon and Hal Seibert for leave to amend their complaint and to continue the trial date. For the reasons set forth, the motion is **granted** on the terms set forth below.

Background

This action involves a dispute as to whether there is a public easement burdening the property located at 2354 Alameda Diablo in Diablo ("Disputed Property"). Plaintiffs contend the easement is approximately 25 feet wide by 100 to 125 feet long (the "Disputed Easement" or "Cut-Through") reflected in the Minor Subdivision Map MS 263-78 ("Map MS 263-78") recorded September 19, 1979 in Book 81, Page 1 of Parcel Maps in the Official Records of Contra Costa County. Map MS 263-78 refers to an offer of dedication of the strip of land for "riding and hiking." (FAC ¶¶ 3, 5, 9-11, 17, 18, and Exh. B.)

When the complaint was filed, U.S. Bank National Association was named as a defendant because U.S. Bank was the title holder of the Disputed Property. U.S. Bank later sold the Disputed Property to defendant DeEtte R. Sipos, who appears in the action individually and as Trustee of The DeEtte R. Sipos Trust Under The EHR QPRT dated 3/26/2003. U.S. Bank was dismissed from the case on June 24, 2025. Sipos was named as a defendant when Plaintiffs filed their operative first amended complaint ("FAC") on September 6, 2024. Sipos filed an answer to the FAC on November 13, 2024, and later an amended answer.

The FAC includes two causes of action for declaratory relief which have been dismissed by Plaintiffs (Req. for Dism. filed 6/2/2025), a cause of action for quiet title to the Disputed Easement, and a cause of action for interference with the Disputed Easement. A preliminary injunction was issued on July 29, 2025 by which an approximate two foot section of fence was ordered removed from the Disputed Property pending trial. Trial is presently set for August 24, 2026.

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (See Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (See *also* Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission

to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.)

Legal Standards for Trial Continuance

Rule 3.1332 of the California Rules of Court addresses the grounds for a motion to continue a trial date. The Rule provides that trial dates are "firm" and continuances "disfavored," but the Rule allows a party to move for a continuance of the trial date "as soon as reasonably practical once the necessity for the continuance is discovered." (Cal. R. Ct., Rule 3.1332(a), (b) and (c).) "The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. R. Ct., Rule 3.1332(c).) Rule 3.1332 has a nonexclusive list of facts that may demonstrate "good cause" to continue a trial date. The list includes, among other facts, "[a] significant, unanticipated change in the status of the case as a result of which the case is not ready for trial." (Cal. R. Ct., Rule 3.1332(c) (7).)

Rule 3.1332 directs the Court to "consider all the facts and circumstances that are relevant to the determination," and sets forth another nonexclusive list of factors for the Court to examine. (Cal. R. Ct., Rule 3.1332(d).) These factors include: "(1) The proximity of the trial date; [¶] (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party; [¶] (3) The length of the continuance requested; [¶] (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance; [¶] (5) The prejudice that parties or witnesses will suffer as a result of the continuance; [¶] (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay; [¶] (7) The court's calendar and the impact of granting a continuance on other pending trials; [¶] (8) Whether trial counsel is engaged in another trial; [¶] (9) Whether all parties have stipulated to a continuance; [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. R. Ct., Rule 3.1332(d)(1)-(11).)

"The granting or refusal of a continuance is a matter of discretion with the trial court and its ruling will not be disturbed unless a clear abuse of that discretion is shown. [Citation omitted.]" (*In re Marriage of Hinman* (1997) 55 Cal. App. 4th 988, 1002.) (*See also Schlothman v. Rusalem* (1953), 41 Cal. 2d 414, 417.)

Sipos Request for Judicial Notice

Sipos has requested the Court take judicial notice of prior pleadings and orders filed in the case. (Sipos RJN Exhs. 1-18.) The Court notes that the March 19, 2025 Wooten Opposition to the renewed motion for preliminary injunction (Sipos RJN Exhs. 8 and 9) was withdrawn by Wooten on March 24, 2025. (Not. of Withdrawal filed 3/24/2025.) The Court grants the unopposed request, with the exception of RJN Exhibits 8 and 9, subject to the applicable limitations on the scope of judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice

does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Objection to Sipos Overlength Opposition

Plaintiffs object to the Sipos opposition memorandum. which is approximately 18 pages, 3 pages over the 15-page limit for motions, other than summary judgment motions. (Cal. R. Ct., Rule 3.1113(d).) Sipos did not ask for leave to file the overlength brief. (Cal. R. Ct., Rule 3.1113(e).) The Court in its discretion will consider the brief. (Cal. R. Ct., Rule 3.1113(g).)

The Motion and Opposition

A. Motion for Leave to Amend

The motion is supported by a declaration of Plaintiffs' counsel, Kevin Brodehl, in compliance with Rule 3.1324 of the California Rules of Court. With regard to the request for leave to file a second amended complaint ("2AC"), the declaration includes a copy of the proposed 2AC and a "redlined" version of the 2AC marked to show the changes from the FAC. (Brodehl Decl. Exhs. A and B.) The primary substantive amendment Plaintiffs propose to make in the 2AC is to allege that, in addition to an express offer of dedication with implied acceptance by public use, there was an implied offer of dedication and acceptance based on the use of the land comprising the Disputed Easement prior to 1972.

The hearing on Plaintiffs' motion for summary judgment was scheduled for June 17, 2026. The Court's tentative ruling denying the motion for summary judgment became the order of the Court on June 17, 2026, and Plaintiffs filed their motion for leave to amend less than two weeks later on June 30, 2026. Within less than 10 days after that, the parties, to their credit, had reached a stipulation setting a schedule for filing of papers and the hearing on this motion, and adjusting pre-trial deadlines in the interests of efficiency and avoidance of unnecessary expense. (Brodehl. Decl. Exh. E [stipulation executed 6/26/2026].)

Plaintiffs have explained the need for the amendments in light of the following: (a) Sipos's March 2025 responses to a request for production of documents that omitted the "Condition 15" document relied on in her opposition to the summary judgment motion (Brodehl Decl. ¶ 19); (b) the June 17, 2026 order denying Plaintiffs' motion for summary judgment; and (c) arguments raised by Sipos in opposition to the motion for summary judgment regarding revocation of the offer of the easement based on the erection of fencing at the end of the Cut-Through and the scope of permitted uses of the "riding" easement based on conditions imposed on approval of the subdivision of the Disputed Property when the subdivision map was approved and recorded, which Plaintiffs contend had not been asserted in Sipos's responses to discovery or in Sipos's answer. (Brodehl Decl. ¶¶ 7-10, 18-20.)

Plaintiffs also explain why the "implied easement" based on pre-1972 use was "superfluous" until the foregoing arguments were asserted by Sipos in opposition to the motion and relied on in part by the Court in denying their motion for summary judgment. (Brodehl Decl. ¶ 10.) They contend they acted diligently in seeking leave to amend based on the foregoing events. They contend the underlying facts of pre-1972 use were alleged in the FAC, and they have already produced tens of thousands of pages

of documents comprising all the records available to Plaintiffs regarding the Disputed Easement. (Brodehl Decl. ¶ 20.) The continuance of the trial date that would be necessitated by allowing Plaintiffs to file the 2AC will minimize any prejudice to Sipos by providing additional time for her to prepare for trial and conduct any discovery should she wish to, though she has not conducted any depositions to date, and only served her first written discovery on April 8, 2026. (Brodehl Decl. ¶ 20.)

B. Motion to Continue Trial

Plaintiffs' motion to continue the trial is made on the ground that there was a "significant, unanticipated change in the status of the case." (Cal. R. Ct., Rule 3.1332(c)(7).) The "unanticipated change" is based on the Court granting them leave to amend to file the 2AC, primarily because the 2AC would have to be re-served by publication on the "persons unknown" to support a binding, *in rem* determination under the quiet title statutes. (Code Civ. Proc. §§ 415.50 [service by publication], 471.5 [requiring service of amended complaint on affected parties], 762.010, 762.020 [naming "all persons unknown"], 762.060, 763.010, and 763.020 [publication and posting].)

If leave to file the 2AC is granted, a trial continuance would be warranted for "good cause" to provide the time necessary for defendant Sipos to file an answer to the 2AC, for the "persons unknown" with an interest in the Disputed Property to be served by publication and to respond, and for Sipos to conduct any additional discovery she determines may be warranted in light of the amendments. As a practical matter, the trial would necessarily have to be continued for approximately 90 days.

C. The Sipos Opposition

Sipos argues that leave to amend should be denied because Plaintiffs are seeking to add a "second, different easement" claim based on an implied easement arising from public use prior to 1972. (Opp. p. 2, ll. 5-7.) Sipos argues Plaintiffs previously characterized the implied easement prior to 1972 as superfluous claim and a theory not relevant to their claim that the public easement arose from the express offer of dedication in the 1979 recorded subdivision map which was impliedly accepted by public use. (Plaintiffs explain that their argument in that regard was in response to arguments that Civil Code section 1009 bars Plaintiffs' easement claim based on an express offer of dedication and implied acceptance.)

Sipos's primary opposition is that Plaintiffs were aware of the availability of the alternative implied easement theory or claim but did not pursue it, and that they are only seeking to assert the theory now because of the Court's June 17, 2026 ruling on their summary judgment motion. Sipos argues the Plaintiffs made a tactical or strategic decision to forego the implied easement theory (until now), that the delay in asserting the theory is unexcused, and that Sipos will be prejudiced. She disputes that Plaintiffs were surprised or unaware the contention that the offer of dedication may have been revoked prior to 2007 or that Condition 15 for the approval of the subdivision in 1979 limited the allowed uses of the easement, citing documents subject to her RJN. Sipos nevertheless implicitly concedes that her discovery responses, particularly her response to Form Interrogatory No. 15.1, did not cite either the revocation by fencing of the Disputed Property when the property was developed or Condition 15. (Opp. pp. 11-12.)

The Court's Analysis

A. Motion for Leave to Amend

Considering the motion for leave to amend first, Plaintiffs concede factual allegations regarding the length of time the Disputed Easement has been used, who has used it, and for what purposes, have been part of the allegations of the complaint and then the FAC, including Plaintiffs' contention that there has been a public use or dedication for roughly a century based on the recorded public right of way at one end of the Disputed Easement. (*See, e.g.*, Compl. ¶¶ 8, 9, 11, 16; FAC ¶¶ 10, 11, 12, 14.) Whether the evidence supports a potential inference of revocation of the offer of dedication, including the evidence of fencing on the property dating before 2007, is an issue raised and addressed in the proceedings on Plaintiffs' initial and renewed motions for preliminary injunction. (2-7-25 Min. Order PDF pp. 9-10; 7-29-25 OAH p. 26.) The scope of permitted uses of the Disputed Easement based on the meaning of the term "riding" in the recorded offer of dedication has also been an issue, as reflected in the factual allegations of the FAC and also explicitly in Plaintiffs' fourth cause of action for declaratory relief in the FAC, now dismissed. (FAC ¶¶ 9, 11 and 13 [easement for "riding"], 14, 15, 36; 2-7-25 Min. Order PDF p. 8; 7-29-25 OAH p. 20.)

1. Delay in Presenting the Implied Easement Claim

Notably, delay alone is generally not sufficient to deny leave to amend in light of the policies underlying the amendment statutes. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565 [reversing judgment on the pleadings for defendant after plaintiff's motion to amend made on the day of trial was denied].) Plaintiffs have asserted throughout the case that the Disputed Easement has been used by the public for roughly 100 years. Use of the easement for recreational purposes preceding 1972 is not a newly discovered fact, nor does it appear that Plaintiffs were not aware that an implied easement theory could have been asserted when they filed their FAC. However, it also seems true that the facts regarding the use of the Disputed Easement over decades preceding 1972 only took on new significance to Plaintiffs based on Sipos's opposition to the motion for summary judgment, and then the Court's June 17, 2026 ruling denying their motion for summary judgment on June 17, 2026. (*See Brodehl Decl.* ¶¶ 8-10.)

Sipos was a subsequent purchaser of the Disputed Property who bought with full knowledge of the pending litigation. She was joined in the action in September 2024 with the filing of the FAC and has participated in defendant only since November 2024, roughly 20 months ago.

While Sipos contends Plaintiffs knew all along about the implied dedication theory/claim and could have asserted it, Sipos also does not dispute that her written discovery responses to a "state all facts" interrogatory did not include the revocation by fencing in 1980 contention or Condition 15, only making those defenses fully explicit in her opposition to the summary judgment filed at the end of April 2026. There is some dispute whether the lack of revocation of the offer of dedication when the public impliedly accepted the offer of dedication is an affirmative defense that Sipos failed to adequately plead in her answer until her opposition to the summary judgment clearly articulated that position, though arguably that the offer was still open when the public accepted it may be part of the proof essential for Plaintiffs' claim. The Court does not need to resolve that issue on this motion. Based on the Court's intention to grant leave to amend as stated herein, the issue may become moot should Sipos file a new answer to the 2AC that addresses these contentions.

2. Prejudice and Discovery Issues

Sipos argues she is prejudiced. She argues that the amendment will necessitate discovery into a new field of inquiry (pre-1972 use) and that evidence regarding such use is "vanishing." Sipos argues in her opposition memorandum that there is prejudice based on a loss of available evidence, with witnesses to the use of the land in the 1960s being in their 80s and 90s. (Opp. p. 14.) She argues one witness, Robert Tiernan, Sr. who was the plaintiff in the related action filed in 2017 (MSC17-02529), has died, and that an attorney for the Diablo Community Services District refused to testify because he cannot recall events dating back to that time period. (Opp. p. 14.)

Notably, these positions are stated in argument, without evidence that Sipos in fact intends to seek any discovery or depose any witnesses regarding the implied easement claim. The Court notes that the renewed motion for preliminary injunction and motion for summary judgment included roughly 60 declarations by residents and others regarding the use of the Disputed Easement. There are many declarations that were filed in support of the renewed motion for preliminary injunction in 2025 and in support of the motion for summary judgment in 2026 from witnesses who declared that they used the Cut-Through prior to 1972; there is no evidence before the Court that those witnesses are not available to be deposed if Sipos wishes. (See L. Fluhrer Decl., L. Forman Decl.; P. Gilbert Decl.; K. Green Decl.; C. James Decl.; S. Osmer Decl.; T. Parker Decl.; B. Powers Decl.; T. Rei Decl.; T. Trambly Decl. filed in support of summary judgment motion.) Indeed, it would appear that Plaintiffs would be the parties disadvantaged if witnesses are no longer available, given the burden of proof.

It is not clear from the evidence in the record that Sipos wants or needs additional discovery. Plaintiffs' counsel has filed a declaration attesting that they have produced over 96,000 pages of records to Sipos, records which Brodehl attests include any documents in their possession related to the public easement from any time period. (Brodehl Decl. ¶ 20.) Brodehl declares that Sipos propounded her first written discovery in the case on April 8, 2026, that she produced "scant" documents to Plaintiffs (approximately 295 pages) which did not include Condition 15 and largely consisting of documents related to her purchase of the Disputed Property, and that no depositions have been taken by Sipos. (Brodehl Decl. ¶¶ 18-20.)

To the extent the proposed 2AC adds "ancillary relief" with respect to the quiet title claim, including scope of use of the easement and injunctive relief, and a "secondary" easement for maintenance of the trail, if the public easement is established, the relief is within the claims alleged and issues raised in the FAC. Clearly, whether the easement for "riding and hiking" includes bicycle riding has been one of the issues repeatedly raised in the case.

To the extent the ancillary relief raises new issues such as maintenance rights or duties, it seems appropriate to allow leave to amend so that if the public easement is established, these related issues can be resolved in order to grant complete relief regarding the Disputed Easement and avoid a multiplicity of suits. If Sipos is correct that a maintenance easement cannot be awarded as ancillary relief even if the public easement is established, then she will have an opportunity to present applicable legal authority and evidence in support of that position. Sipos has not shown that the approximate 90-day continuance that would result from granting leave to amend is inadequate to allow her to conduct whatever additional investigation, discovery, or research may be required to address the implied easement and ancillary relief proposed to be added in the 2AC.

3. Futility

Sipos argues that the amendment to add the implied easement theory is futile, as Plaintiffs will not be able to prove the use necessary to establish an implied easement under applicable law, including *Friends of Hastain Trail v. Coldwater Development, LLC* (2016) 1 Cal.App.5th 1013 and *Friends of the Trails v. Blasius* (2000) 78 Cal.App.4th 810. The determination of whether Plaintiffs can prove an implied easement is better made based on an evidentiary record, not on a motion for leave to amend to assert the theory. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760-761; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

4. Cases Denying Leave to Amend Do Not Support Denial in This Case

Sipos cites three decisions to support her contention that leave to amend should be denied, all of which are factually inapposite or distinguishable. In *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, plaintiffs alleged a claim for negligence based on a DNA paternity test. The defendant moved for summary judgment, which the trial court granted, and the trial court denied the plaintiffs' oral request for leave to amend made at the summary judgment hearing after it was apparent summary judgment would be granted to defendant. The Court of Appeal affirmed, citing, among other grounds, that the plaintiffs' proposed amendment was factually inconsistent with other facts they had alleged and other factual admissions they had made in opposing the summary judgment motion, such that the sham pleading doctrine was in play. (*Id.* at 1280-1281.) Unlike the plaintiffs in *Falcon*, Plaintiffs are not seeking leave to amend to avoid an adverse outcome on a defendant's summary judgment motion, nor are they asking to plead facts inconsistent with their FAC, or a theory that is inconsistent with, rather than merely another alternative to, their express offer of dedication and implied acceptance theory. Similarly, in *Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, when the defendant's motion for summary judgment was going to be granted, the plaintiffs asked the trial court for leave to amend to allege a federal claim after the litigation had been pending for four and a half years. The plaintiffs had chosen not to plead the federal labor claim in order to avoid giving rise to federal question jurisdiction and removal of the action to federal court. (*Id.* at 739.)

In *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, the defendant appealed a judgment for the plaintiff for race discrimination under the Unruh Civil Rights Act. The Court explained a long and tortured procedural history of the action that led to a prior appeal and reversal on a procedural ground, and a return of the case to the trial court for a new trial against the mortgage broker. (*Id.* at 690-691.) The Court of Appeal affirmed the trial court's denial of the defendant's motion for leave to amend its answer to allege its own negligence as an affirmative defense, stating that the defendant's "original answer left no room for negligence as an explanation for its failure to find the Greens a loan," citing specific contrary facts alleged in the original answer which was verified by the defendant's officer. (*Id.* at 692.) Further, based on the procedural posture, the timing of the defendant's request to amend to allege the defendant's negligence as an affirmative defense was made after the plaintiffs were foreclosed from amending their complaint to add a claim for negligence, and the defendant offered no excuse for the delay. The Court affirmed the denial of leave to amend the answer, among other things finding that "there is no doubt that an amendment would have contradicted both the mortgage broker's previous verified pleading . . . and required further

discovery, requiring the Greens to substantially redo their trial strategy." (*Id.* at 693.)

The "moving target" rationale of those cases arose in a context different from this case, when a defendant defeated the plaintiff's pleaded claims, and the plaintiff attempted to avoid entry of judgment for the defendant by asking for leave to amend once the trial court's intention to grant summary judgment was clear. Plaintiffs were not facing a loss of their claims; they just failed to prove that they were entitled to judgment without trial because there were no material fact disputes. They ask to include a theory supporting the existence of a public easement in the same location and burdening the same property based on use already alleged in the FAC.

The circumstances in this case also do not compare to those in other cases in which leave to amend was denied and the denial upheld on appeal, cases on which the cases cited by Sipos rely. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176 [denial of request for leave to amend made over five years after suit commenced, and during oral argument on summary judgment motion]. (See also *Duchrow v. Forest* (2013) 215 Cal.App.4th 1359, 1377-1380 [denying request for leave to amend complaint made on the fourth day of a five day trial with no explanation for the delay]; *City of Stanton v. Cox* ('989) 207 Cal. App. 3d 1557, 1564 ["A party who waits 18 months before attempting to amend, and then does so only after trial has commenced, and who offers no excuse for the failure, can hardly complain when the request to amend is denied. Under these circumstances, we cannot say the trial judge abused his discretion." (Emphasis added.)]; *Record v. Reason* (1993) 73 Cal.App.4th 472, 486 [delay of three years].)

5. Conclusion: Leave to File the 2AC Should Be Granted

The issues at stake in the case involve matters beyond the personal interests of the parties. Plaintiffs are seeking to establish the existence of a public easement over the Cut-Through that prior evidence before the Court suggests has been used for decades both by Diablo residents and by members of the public at large, though whether the public was actually crossing over the Wooten Property next door and other issues relevant to the establishment of a public easement must be litigated at trial. Plaintiffs have established what the Court would characterize as a compelling need to amend to include the implied easement theory so that the full panoply of relevant issues and theories concerning the Disputed Easement can be addressed.

Even if the implied easement is considered a new claim and not just a new theory, Sipos has not shown that any prejudice cannot be minimized or eliminated by the proposed three-month continuance of the trial. The continuance would give Sipos roughly four months from the date of this hearing to prepare to meet the additional theory. Sipos has not presented any evidence that she will be foreclosed from obtaining discovery and additional evidence through documents or depositions of the witnesses who have already attested to their use of the Cut-Through during the pre-1972 time frame.

Sipos also has not disputed Plaintiffs' estimate that a three-month continuance of the trial would be adequate. Weighing the benefits and significance of the proposed amendments in the 2AC against the claims of prejudice from delay or the need for more discovery, the Court exercises its discretion to

grant Plaintiffs' motion for leave to amend to allow Plaintiffs to file the 2AC, on the terms set forth in this ruling.

B. Motion to Continue Trial

Allowing the filing of the 2AC will change the status of the case sufficiently to warrant continuance of the trial, as service by publication will be required for the "unknown persons" defendants. Any additional discovery can proceed during the time period for publication and response by the "unknown persons." The motion was filed approximately seven weeks before the scheduled trial date. No prior continuances or extensions of time have been granted. Plaintiffs seek a continuance of only approximately three months, just enough to effectuate service by publication and allow for the response by any unknown persons. Based on the prior service by publication, it seems unlikely there will be a response.

The Court concludes that the need for the continuance outweighs any prejudice caused by the delay, considering that the action is entitled to a trial preference based on the preliminary injunction issued July 29, 2025. The Court finds the interests of justice warrant the continuance, predicated upon the Court allowing the filing of the 2AC, in light of, among other things, the public interests at stake in the claims being asserted. The Court will attempt to minimize any prejudice by providing a trial date approximately three months from the current date. Weighing the circumstances presented, the relevant factors, the concerns regarding delay and prejudice to the defendant, and the interests of the Plaintiffs in presenting at trial all grounds supporting the existence of a public easement, the Court finds the motion for continuance of the trial for good cause should be **granted** pursuant to Rule 3.1332.

Conclusion and Ruling

The Court **grants** the motion for leave to amend and **grants** the motion to continue the trial and imposes the following terms and conditions on granting the motion: (1) Plaintiffs shall file and serve their 2AC on the existing defendant(s) **by July 24, 2026**; (2) Plaintiffs shall present to the Court an *ex parte* application for service by publication or a stipulation and proposed order for service by publication **by no later than July 29, 2026**; and (3) the parties **shall appear at the hearing, in person or by Zoom**, to address scheduling the continued trial and issue conference dates.

10. 9:00 AM CASE NUMBER: C23-02586

CASE NAME: FLORENCE DROCAN VS. FULL CIRCLE OF CHOICES

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

***TENTATIVE RULING**

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on July 9, 2025. No compliance statement or declaration was prepared by Plaintiff's Counsel as ordered by the Court.

This matter is **continued** to August 19, 2026 at 9:00 a.m. On August 19, 2026, Plaintiff's Counsels, Kane Moon, Esq., is **ordered to appear in person and ordered to show cause** as to why they should